

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 25-31

NIELSEN & BAINBRIDGE, LLC

v.

ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL (EUROPE) LIMITED

FOURTH JOINT MOTION FOR EXTENSION OF BRIEFING DEADLINES

Complainant Nielsen & Bainbridge, LLC (“Complainant” or “NBG”) and Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited (together, “Respondents” or “OOCL” and, collectively with Complainant, the “Parties”), by their respective undersigned counsel, and pursuant to 46 C.F.R. Sections 502.69 and 502.12, hereby submit this Joint Motion for Extension of Briefing Deadlines (“Motion”) and respectfully request a thirty-day extension of each of the three remaining briefing deadlines in the Presiding Officer’s August 4, 2026 Third Amended Scheduling Order, with an additional two weeks for the final deadline to account for the year-end holidays. The Parties completed all fact and expert discovery within the deadlines set by that Order and seek no change to any discovery deadline.

I. The Current Schedule and the Status of Discovery

On August 4, 2026, the Presiding Officer entered the Third Amended Scheduling Order (Dkt. 27), granting the Parties’ Third Joint Motion for Limited Extension of Time (Dkt. 26). That Order set August 14, 2026 as the deadline to complete depositions of fact witnesses and September 23, 2026 as the deadline to complete expert depositions and the close of discovery. The Parties have completed each of those deadlines.

In this proceeding, the Parties completed thirteen (13) fact witness depositions, including the corporate deposition of Complainant's designee and the depositions of OOCL employees Thomas Schmiemann and Sharon Wong on August 11 and August 13, 2026, respectively, within the extended fact-deposition deadline. The documentary record is also substantial. Across five production volumes, Complainant produced 143,531 documents totaling 389,325 pages. Across sixteen production volumes, Respondents produced 12,177 documents totaling 29,580 pages. In total, the Parties produced more than 155,000 documents and 418,000 pages.

Expert discovery followed the close of fact witnesses on a compressed timeline. Complainant served the initial expert report of John D. McCown, 71 pages together with supporting damages appendices, on August 28, 2026. Respondents served the rebuttal expert report of Gary Kardian, 174 pages including exhibits, on September 11, 2026. Since entry of the Third Amended Scheduling Order, the Parties have also completed all expert depositions: John D. McCown on September 18, 2026, Gary Kardian on September 21, 2026, and Glenn Metzger on September 22, 2026, each before the September 23, 2026 close of discovery.

The remaining deadlines in the Third Amended Scheduling Order, which are the subject of this Motion, are as follows:

CURRENT DEADLINE	EVENT
October 21, 2026	Complainant's initial brief, proposed findings of fact, appendix
November 18, 2026	Respondents' opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
December 2, 2026	Complainant's reply and responses to proposed findings of fact

II. Good Cause Exists for the Requested Extension

A. The Parties Have Diligently Completed Discovery Within the Presiding Officer's Deadlines

The Parties have worked diligently and cooperatively throughout this proceeding. They scheduled depositions on a rolling basis as witness availability permitted, completed every fact

and expert deposition within the deadlines set by the Presiding Officer, and exchanged expert reports on the dates the Presiding Officer ordered.

The need for this Motion arises not from any lack of diligence, but from the practical difficulty of digesting the resulting record within the compressed period before briefing in order to compress significant and complex factual and legal positions into the Parties' respective briefs. The Parties would not seek additional time were it not necessary to review the volume of discovery produced and the depositions taken in preparing their briefs, their respective proposed findings of fact, and their responses to each other's proposed findings.

Under the current schedule, Complainant's initial brief, proposed findings of fact, and appendix are due October 21, 2026, four weeks after the close of expert discovery. Within that window, Complainant must marshal a record comprising more than 418,000 pages of documents, thirteen fact depositions, and the Parties' expert reports and expert testimony into a brief and proposed findings of fact.

Respondents face the same burden in turn. Respondents must respond to each of Complainant's proposed findings of fact, propose their own findings, and prepare their opposition brief and appendix. Complainant must then respond to each of Respondents' proposed findings of fact in its reply. Proposed findings and responses that are accurate and fully supported by the record will assist the Presiding Officer, and they cannot be prepared with that care on the current schedule.

B. Concurrent Deadlines in the Severed NBG Proceedings Compound the Burden

NBG originally brought this proceeding against multiple respondents, and it was severed into individual dockets. The severed proceedings are now at a similar stage, and their deadlines overlap with the briefing schedule here. Discovery in those proceedings has been equally demanding. Between August 9 and September 2, 2026, the parties in *NBG v. Evergreen/Yang Ming*, Docket No. 25-02, took nine (9) fact depositions, several of them overnight with witnesses

in Taiwan and through interpreters. Between September 9 and September 24, 2026, the parties in *NBG v. ONE*, Docket No. 25-30, took seven (7) fact depositions. Additional fact witnesses remain to be scheduled in both proceedings. Complainant's counsel is presently scheduled for the following in the severed proceedings between now and shortly after the current October 21, 2026 deadline in this proceeding:

- September 28 (service of five rebuttal expert reports from four experts in *NBG v. Evergreen/Yang Ming*, Docket No. 25-02)
- September 30 (one fact deposition in *NBG v. ONE*, Docket No. 25-30)
- October 1 (one fact deposition in *NBG v. ONE*)
- October 2 (deposition of Complainant's expert in *NBG v. Evergreen/Yang Ming*)
- October 8 (one fact deposition in *NBG v. ONE*)
- Weeks of October 5 and October 12 (four expert depositions of respondents' experts in *NBG v. Evergreen/Yang Ming*)
- October 30 (Complainant's opening brief and proposed findings of fact due in *NBG v. Evergreen/Yang Ming*)

Additional fact depositions in *NBG v. ONE* remain to be scheduled, and a joint motion to extend the deadlines in that proceeding is pending. Complainant's opening briefs in this proceeding and in *NBG v. Evergreen/Yang Ming* are currently due nine days apart, during a period that also includes at least eight depositions across the severed proceedings.

C. The Relief Requested Is Limited and Applies Equally to Both Sides

The extension requested is limited in every aspect. It is limited in time, seeking thirty days for each remaining deadline, plus an additional two weeks for Complainant's reply to account for the Christmas and New Year's holidays; limited in scope, applying solely to the briefing schedule; and limited in effect, shifting each Party's deadlines without altering the structure of the schedule.

The Parties jointly request this relief, and neither Party will be prejudiced by it. The Parties do not anticipate seeking any further extension of the schedule.

III. Conclusion

For the foregoing reasons, the Parties respectfully request that the Presiding Officer extend

the remaining deadlines in the August 4, 2026 Third Amended Scheduling Order by thirty days, with an additional two weeks for Complainant's reply, as follows:

PROPOSED DEADLINE	EVENT
November 20, 2026	Complainant's initial brief, proposed findings of fact, appendix
December 18, 2026	Respondents' opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
January 19, 2027	Complainant's reply and responses to proposed findings of fact

Pursuant to 46 C.F.R. Section 502.71(a), counsel for Complainant and counsel for Respondents have discussed this Motion with each other in a good faith effort to determine whether there is any opposition to the relief sought and, if there is opposition, to narrow the area of disagreement. The Parties each agree to the relief requested in this Motion.

WHEREFORE, the Parties jointly pray their Fourth Joint Motion for Extension of Briefing Deadlines be granted.

Dated: September 28, 2026

Respectfully submitted,

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